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EU AI Act

Conformity Assessments

Assessing high-risk AI systems

September 2025

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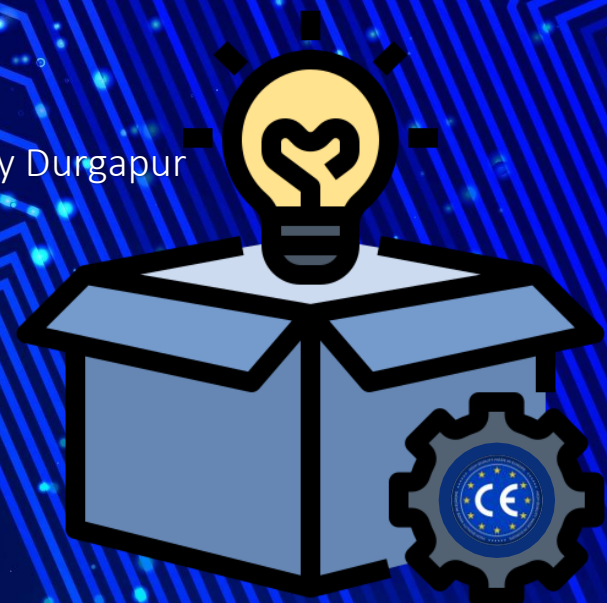
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AI & Partners defends and extends the digital rights of users at risk around the world. By combining direct technical support, comprehensive policy engagement, global advocacy, grassroots professional services, regulatory interventions, and participating in industry groups such as AI Commons, we fight for fundamental rights in the artificial intelligence age.

This report was prepared by Sean Donald John Musch and Michael Charles Borrelli. For more information visit <https://www.ai-and-partners.com/>.

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Who Are We

AI That You Can Trust

Why Us?

Stay on the right side of history. At AI & Partners, we believe AI should unlock potential—not cause harm. We’ve seen the fear and fallout when teams lose control of AI, but also the trust and innovation that follow when it’s handled responsibly. That’s why we exist: to help you build AI you can trust and stand behind—for the long run.

80%

of AI systems
are unknown

What Do We Do?

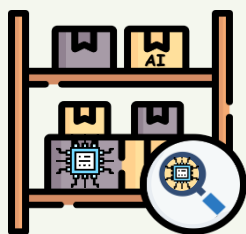
We enable safe AI usage—for your organization and your clients. Unknown AI adoption leads to confusion, risk, and reputational damage. We help you take control with tools to identify, monitor, and govern all AI systems—so you're not reacting to AI, you're leading it.



How Do We Do It?

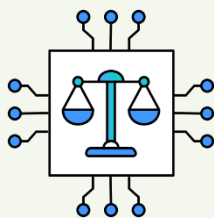
Do you know what AI systems you have? Identify all known and unknown AI systems (algorithms, LLMs, prompts, and models) from all internal and external AI vendors, automated by generating your inventory. Overall, 80% of AI inventory is unknown to our clients.

How do you guarantee ongoing safe AI use? Continuously monitor deployed AI systems for performance drift, anomalies or failures, real-world impacts, and emerging risks (e.g. data poisoning). Any malfunction of an AI system has severe implications for organisations (e.g. inability to assess online misinformation that leads to widespread public mistrust), so monitoring becomes a matter of urgency.



AI Discovery & AI Inventory

Automatically detect all AI systems, including models, algorithms, and prompts, and maintain a live, always-updated register for full visibility and compliance.



Responsible AI

Embed fairness, transparency, and control into every stage of AI use—aligning with the EU AI Act and building ‘Trustworthy-by-Design’.



Model Monitoring

Continuously track your AI models after deployment to detect drift, bias, or failure—so you stay in control and prevent harm before it happens.



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Introduction

As the EU Artificial Intelligence Act (EU AI Act) continues its implementation path, conformity assessments constitute a key mechanism for ensuring safe, transparent, and accountable AI systems. These structured evaluation processes translate legal obligations into verifiable procedures, helping firms and regulators operationalise the AI Act while safeguarding fundamental rights and promoting trustworthy innovation.

This report serves as a practical blueprint for stakeholders navigating the complex lifecycle of conformity assessments under the EU AI Act. It distils best practices, lessons learned from adjacent domains (such as cybersecurity and digital identity), and actionable insights for implementing robust, high-quality assessments that meet both legal requirements and societal expectations. From legal alignment and technical documentation to governance planning and risk management, the report identifies opportunities to strengthen Europe's AI ecosystem through consistent, auditable conformity procedures.

Drawing from real-world conformity assessment scenarios and lifecycle responsibilities across AI development, deployment, and oversight, the report highlights the importance of aligning design-phase decisions with long-term compliance. It underscores the strategic value of ethical foresight, legal readiness, and governance structures that embed auditability and fairness throughout the AI lifecycle—from initial concept to post-market monitoring and retirement.

By mapping out the key roles, responsibilities, and interactions among actors involved in conformity assessments—such as providers, deployers, authorised representatives, notified bodies, and regulators—this document promotes a collaborative, transparent, and inclusive approach. It illustrates how organisations can streamline compliance and market access, how public authorities can reinforce policy goals, and how users can benefit from AI systems that are safer, more explainable, and aligned with European values.

Whether you are an SME integrating AI into your products, a regulator overseeing compliance, or a civil society group advocating for ethical AI, this report provides a structured reference for engaging with conformity assessments—laying the groundwork for responsible, scalable, and lawful AI deployment across the EU Single Market.

Best regards,

Sean Musch

Founder/CEO

AI & Partners



Key questions
being asked about
Conformity Assessments



1. What is a conformity assessment in the context of the EU AI Act?

A conformity assessment is a formal process to determine whether an AI system complies with the EU AI Act's requirements for high-risk systems. It involves evaluating legal, ethical, and technical factors such as risk management, data quality, transparency, and human oversight. The purpose is to ensure that AI systems are safe, respect fundamental rights, and perform as intended. The process must be documented and, in some cases, verified by an external body. Completion of the assessment is required before placing high-risk AI systems on the EU market.

2. Who must perform a conformity assessment?

Providers of high-risk AI systems—those listed in Annex III of the EU AI Act—are responsible for conducting conformity assessments. This includes companies within the EU and those outside the EU if their systems are deployed or used within the EU market. If the AI system is part of a product already regulated (like a medical device), existing sectoral conformity processes may apply. For most high-risk systems, providers can perform internal assessments, while a few require third-party evaluation by a notified body before being marketed or put into service.

3. When is a conformity assessment required?

A conformity assessment is required before any high-risk AI system can be placed on the EU market or used within the EU. It applies to standalone systems listed in Annex III of the EU AI Act, such as AI used in hiring, law enforcement, critical infrastructure, or access to public services. If the AI system is embedded in a product already subject to EU regulation, existing procedures may incorporate AI-specific compliance. Regardless of origin, any system used in the EU that falls under these categories must undergo conformity assessment.

4. What are the key steps in a conformity assessment?

The conformity assessment process includes:

- Risk identification and mitigation
- Data quality and governance documentation
- Model evaluation and validation
- Post-market monitoring planning
- Preparation of technical documentation (Annex IV)
- Drafting the EU declaration of conformity
- Registering the system in the public database (if required)

These steps ensure the AI system meets legal, ethical, and technical requirements. Most high-risk systems can follow an internal control procedure, while some—like biometric identification—require external assessment by a notified body prior to deployment.

5. What's the difference between internal and external conformity assessments?

An internal conformity assessment is conducted by the provider and involves self-evaluation of the AI system's compliance with the EU AI Act. It's the most common route and applies to most high-risk systems. An external conformity assessment requires review by an independent third party, known as a notified body. This is mandatory for specific high-risk use cases, such as biometric identification. The external body reviews technical documentation, quality management processes, and risk controls. Whether internal or external, both approaches must result in verifiable, auditable documentation of compliance.





6. What documents are required during a conformity assessment?

Providers must prepare a range of documents, including:

- Technical documentation (Annex IV): Describes purpose, data, design, and performance.
- Risk management file: Details risk identification, evaluation, and mitigation.
- Logs and post-market monitoring plan: Describes how performance is monitored after deployment.
- EU declaration of conformity (Annex V): Confirms system compliance.
- Registration details: For uploading to the EU public database (Article 51).

These documents are critical for demonstrating compliance and are subject to review by authorities or notified bodies, depending on the AI system's risk level.

7. How often must conformity assessments be updated?

Conformity assessments are not a one-time obligation. Providers must update them whenever substantial changes are made to the AI system that could affect its compliance—such as changes in input data, system functionality, or intended use. Additionally, providers must implement post-market monitoring to detect performance issues or non-compliance. If issues are discovered or reported, corrective actions and reassessments may be required. Regular internal audits and periodic updates help maintain alignment with legal obligations and ethical standards, particularly in fast-changing environments or high-risk sectors like health, finance, or law enforcement.

8. What happens if an AI system fails a conformity assessment?

If a system fails to meet the EU AI Act's requirements during a conformity assessment, it cannot be lawfully placed on the EU market or used within the EU. The provider must revise the system to address the identified issues, such as inadequate risk controls, non-compliant data use, or insufficient transparency measures. Once corrected, the assessment process must be repeated. Delays in addressing non-conformance can result in missed market opportunities and increased regulatory scrutiny. For serious violations, penalties may apply—up to €30 million or 6% of global turnover.

9. Are low-risk AI systems subject to conformity assessments?

Low-risk AI systems are not legally required to undergo a formal conformity assessment under the EU AI Act. However, providers are encouraged to follow voluntary codes of conduct and apply transparency and risk management practices as a matter of good governance. Implementing simplified internal assessments for low-risk systems can demonstrate accountability, increase stakeholder trust, and help prepare for future regulations. Additionally, low-risk systems may still have obligations under other EU laws, such as the GDPR, especially when handling personal data or affecting individuals' rights and freedoms.

10. What are the penalties for non-compliance with conformity assessment obligations?

The EU AI Act includes strong enforcement mechanisms. Failure to conduct or document a required conformity assessment can lead to serious penalties:

- Up to €35 million or 7% of global turnover for prohibited AI practices or data governance violations.
- Up to €15 million or 3% of turnover for other non-compliance issues.
- Up to €7 million for providing false or incomplete information. National supervisory authorities are responsible for enforcement. Organizations must take conformity assessments seriously, as non-compliance exposes them to financial, legal, and reputational risks.



Understanding Conformity Assessments





1. Design



What does this involve?

The design stage of conformity assessment involves defining the AI system's intended purpose, identifying stakeholders, and setting out ethical, legal, and performance requirements. It includes feasibility analysis, risk identification, and the development of governance frameworks that establish accountability and oversight. Documentation must demonstrate that the system's objectives are clear and aligned with applicable laws and fundamental rights. Ethical principles, such as fairness, transparency, and non-discrimination, should be embedded into the system's design. This phase creates a documented foundation for assessing the AI system's conformity throughout its lifecycle.

Why is it necessary?

Design is a critical phase because it sets the strategic direction and ethical alignment of the AI system. A system that is not properly scoped or ethically grounded from the beginning is likely to pose unacceptable risks or fail to meet regulatory obligations. The EU AI Act requires transparency, human oversight, and fundamental rights protection—requirements that must be planned for in the design stage. If these aspects are not considered early, they are difficult to address later. Proper design ensures the AI system can be audited, justified, and shown to comply with the AIA.

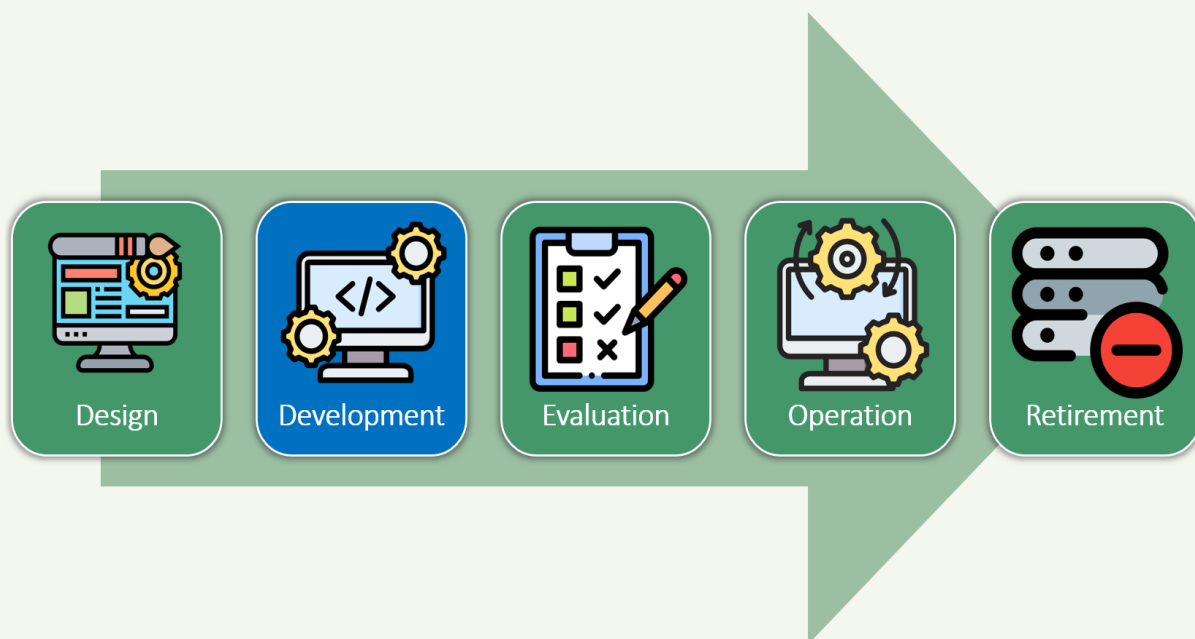
How does it work?

In practice, conformity assessment at the design stage involves creating technical and ethical documentation that details the system's purpose, target users, performance metrics, and risk mitigation strategies. Organizations must identify responsible individuals, describe how values are implemented in governance, and assess societal and environmental impacts. This documentation supports future assessments and provides the basis for both internal and external evaluation. It also contributes to the technical file and forms part of the evidence required for placing high-risk AI systems on the EU market.





2. Development



What does this involve?

The development stage focuses on data collection, preprocessing, model training, and ensuring the technical soundness of the AI system. This includes verifying data quality, representativeness, and compliance with data protection laws. The algorithms must be selected and developed with fairness, transparency, and robustness in mind. Development documentation must demonstrate that input data and model logic are suitable for the intended purpose and that steps have been taken to identify and mitigate bias, ensure explainability, and validate model performance in line with the AI Act's requirements.

Why is it necessary?

Development is where most of the technical and data-related risks materialize. Poor data quality or model design can introduce bias, reduce accuracy, and undermine trust in the system. The EU AI Act mandates strict controls on data governance and risk management for high-risk systems. These obligations cannot be retrofitted—they must be addressed during development. This phase ensures that the system is technically robust and ethically aligned before it is tested or deployed, providing critical inputs for the conformity assessment process and future audits.

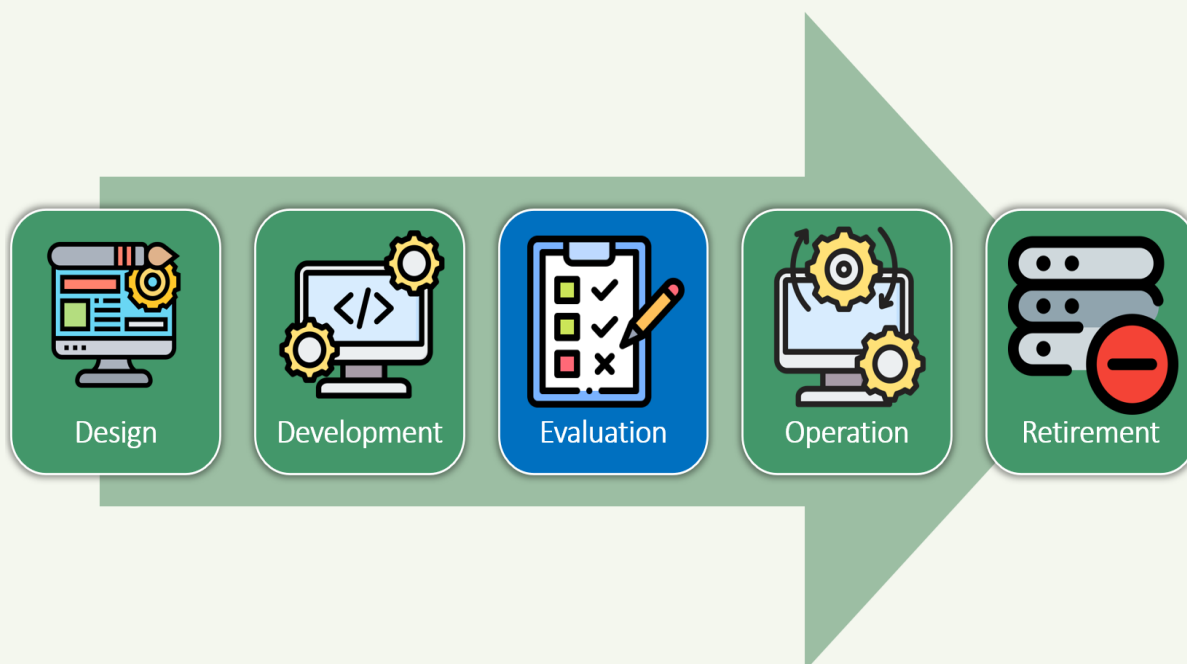
How does it work?

Organizations must maintain detailed records of data sources, preprocessing steps, and model development decisions. This includes assessments of fairness, risk, and compliance with legal standards. Documentation should capture model performance against predefined criteria, explain how hyperparameters were selected, and describe how identified risks were mitigated. These records are necessary for the technical documentation required by the AIA and form the basis for proving the system's conformity during internal or external review. They also enable traceability in the event of post-market scrutiny.





3. Evaluation



What does this involve?

The evaluation stage involves testing the AI system's performance across different metrics and under various conditions. This includes robustness checks, validation using independent data, assessment of edge cases, and analysis of how the system handles protected attributes. It also involves identifying potential failure modes, evaluating their severity, and documenting mitigation strategies. This stage ensures the system meets the defined requirements and that any shortcomings are identified and addressed prior to deployment.

Why is it necessary?

Evaluation provides the evidence that the AI system performs safely, fairly, and predictably. Without thorough testing, systems may behave unpredictably in real-world environments, leading to harm or regulatory non-compliance. The EU AI Act requires providers to demonstrate that their systems meet performance, risk, and transparency obligations. Evaluation helps identify whether the AI system aligns with these criteria, and whether it can be justifiably introduced to the EU market. It also supports accountability by documenting how ethical and technical standards have been verified.

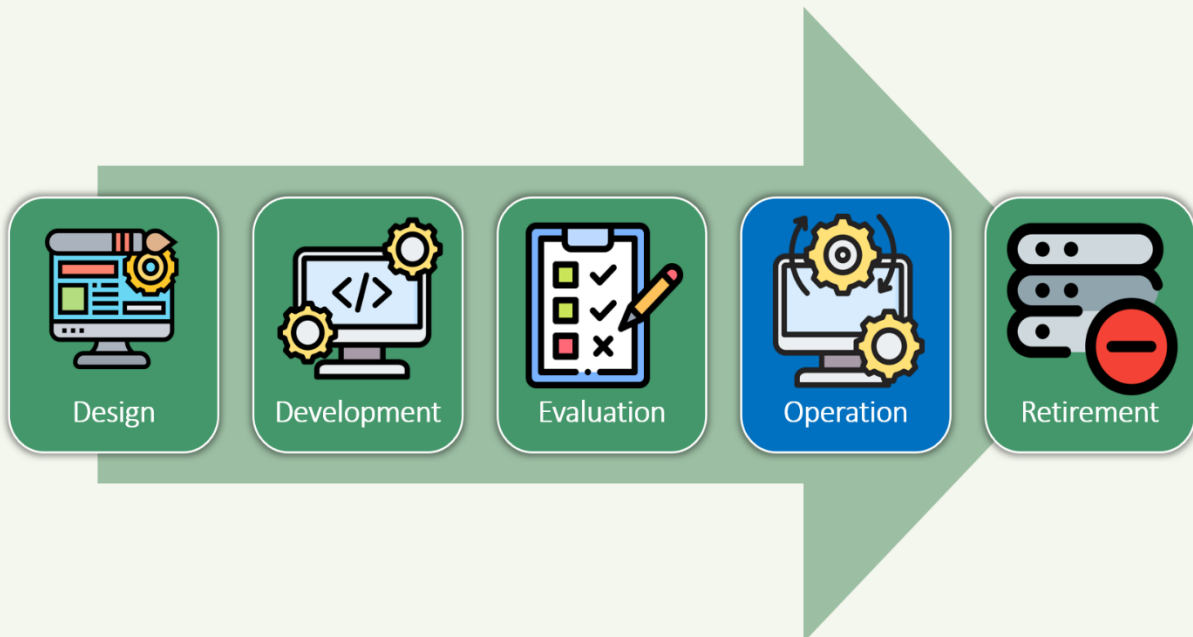
How does it work?

Testing is conducted using separate datasets and includes statistical performance analysis, stress testing, and fairness assessments. Organizations must document the testing methodology, performance results, and identified issues. A clear record of how issues were addressed must be included, showing that the system meets its intended purpose without violating fundamental rights or safety expectations. This evidence becomes part of the conformity assessment documentation required under the AIA, and is often used in the creation of the EU declaration of conformity.





4. Operation



What does this involve?

The operation stage includes the real-time use and ongoing monitoring of the AI system after deployment. This involves detecting performance degradation, monitoring for data drift, tracking user complaints, and responding to incidents. It also includes regular evaluations to ensure that the AI system continues to comply with legal, ethical, and technical standards. Logging, incident tracking, and periodic reviews are all key components of conformity monitoring during this stage.

Why is it necessary?

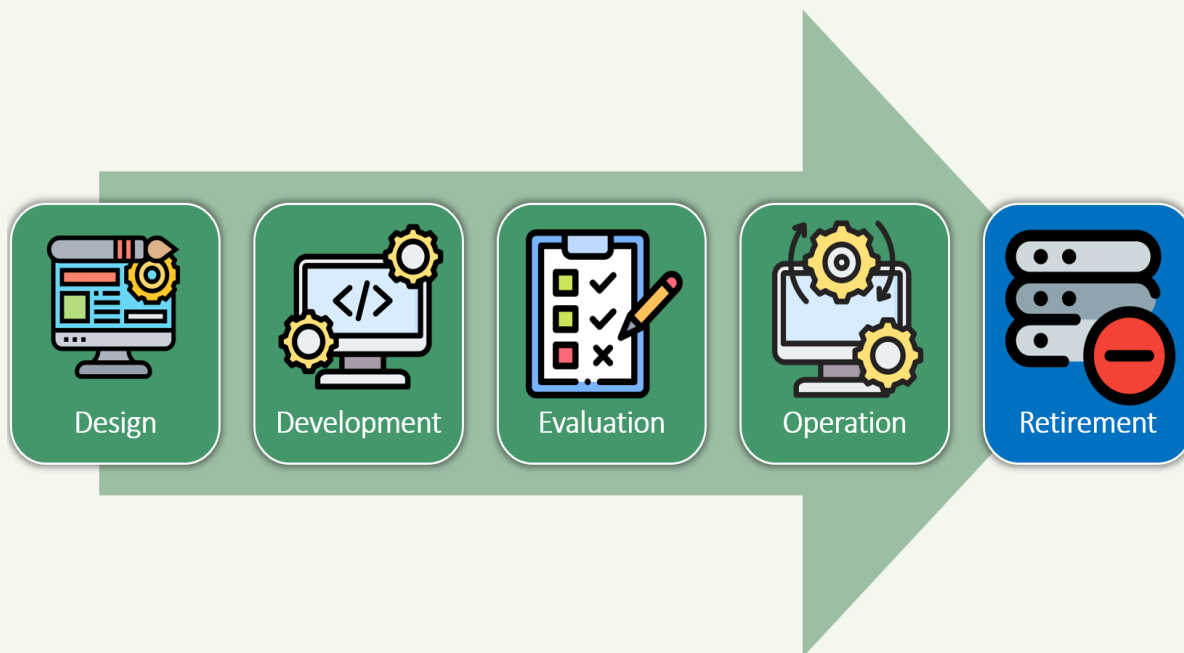
Even AI systems that are initially compliant can become non-compliant over time due to environmental changes, user behavior shifts, or data drift. Ongoing monitoring is required by the EU AI Act to ensure that high-risk systems remain safe and trustworthy. This stage also supports legal defensibility and stakeholder confidence, as organizations must demonstrate that they actively manage risks after the system is on the market. Without this, issues could go undetected and lead to harm, litigation, or regulatory penalties.

How does it work?

Organizations must establish procedures for continuous monitoring, including data quality checks, system performance reviews, and user feedback mechanisms. They should define thresholds for acceptable performance and set escalation protocols when issues arise. Monitoring logs, audit trails, and periodic assessment reports are essential outputs that support conformity over time. These documents are retained as part of the system's lifecycle file and can be requested by supervisory authorities as part of their oversight duties under the AIA.



5. Retirement



What does this involve?

Retirement involves the planned decommissioning of the AI system. This includes evaluating and managing risks associated with system shutdown, archiving or deleting data, terminating integrations, and notifying affected stakeholders. It also involves documenting how the retirement was handled to ensure no residual risks remain. The process must be controlled, compliant, and well-documented to ensure traceability and minimize operational disruption or unintended consequences.

Why is it necessary?

Decommissioning an AI system without oversight can create compliance, security, and ethical risks. For instance, lingering data may violate data retention rules, or dependent systems may be disrupted. The EU AI Act expects full lifecycle management—including end-of-life procedures—for high-risk systems. Retirement planning ensures transparency, prevents technical or legal liabilities, and demonstrates that the organization manages its AI systems responsibly from inception to closure.

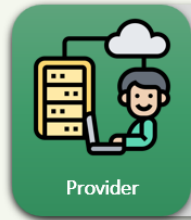
How does it work?

Organizations should assess the risks of decommissioning the system and define appropriate mitigation actions. This includes secure data deletion, revoking access rights, and communicating with stakeholders. A formal record of the retirement process should be created, outlining what was done, why, and by whom. This record forms part of the conformity assessment archive and may be required by regulators or business partners as evidence of responsible lifecycle management.



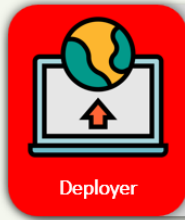
Mapping Conformity Assessments to ecosystem actors





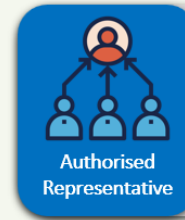
Provider

Develops and markets AI systems.



Deployer

Uses AI under legal authority.



Authorised Representative

EU agent for foreign provider.



Product Manufacturer

Builds products with AI components.



Distributor

Supplies AI systems within market.



Importer

Brings foreign AI into EU.





Conformity Assessment		Actor					
Stage	Description	Provider	Deployer	Authorised Representative	Product Manufacturer	Distributor	Importer
Design	The design stage defines the AI system's purpose, ethical values, and performance criteria. It ensures alignment with organizational governance and assesses feasibility and impact. This foundation prevents project misalignment and embeds legal and ethical considerations early, supporting traceability and accountability throughout the conformity assessment process.	- Role in Design: Providers are responsible for defining the AI system's purpose, ethical values, and performance criteria. They ensure that the design aligns with organizational governance and legal requirements, embedding ethical considerations early in the process. - Conformity Assessment: Providers must ensure that the AI system's design supports traceability and accountability, which are crucial for the conformity assessment	- Role in Design: Providers are responsible for defining the AI system's purpose, ethical values, and performance criteria. They ensure that the design aligns with organizational governance and legal requirements, embedding ethical considerations early in the process. - Conformity Assessment: Providers must ensure that the AI system's design supports traceability and accountability, which are crucial for the conformity assessment	- Role in Design: While not directly involved in the design, authorised representatives ensure that the provider's design and technical documentation meet the conformity assessment requirements. - Conformity Assessment: They verify that the design stage has been properly documented and that the conformity assessment procedures have been followed, maintaining records for regulatory authorities.	- Role in Design: While not directly involved in the design, authorised representatives ensure that the provider's design and technical documentation meet the conformity assessment requirements. - Conformity Assessment: They verify that the design stage has been properly documented and that the conformity assessment procedures have been followed, maintaining records for regulatory authorities.	- Role in Design: While not directly involved in the design, authorised representatives ensure that the provider's design and technical documentation meet the conformity assessment requirements. - Conformity Assessment: They verify that the design stage has been properly documented and that the conformity assessment procedures have been followed, maintaining records for regulatory authorities.	- Role in Design: While not directly involved in the design, authorised representatives ensure that the provider's design and technical documentation meet the conformity assessment requirements. - Conformity Assessment: They verify that the design stage has been properly documented and that the conformity assessment procedures have been followed, maintaining records for regulatory authorities.





		process. This includes documenting the design specifications and ensuring compliance with relevant standards.	process. This includes documenting the design specifications and ensuring compliance with relevant standards.				
Development	During development, the system is built using documented, high-quality, and representative data. This stage addresses data governance, legal compliance (e.g., GDPR), and fairness in model selection. It ensures the model's structure and logic are auditable, forming a core part of the technical documentation required for	- Role in Development: Providers are responsible for building the AI system using high-quality, representative data. They must ensure data governance and legal compliance, such as adherence to GDPR, and select models that are fair and auditable. - Conformity Assessment: Providers must document the model's structure and logic as part of the technical	- Role in Development: Providers are responsible for building the AI system using high-quality, representative data. They must ensure data governance and legal compliance, such as adherence to GDPR, and select models that are fair and auditable. - Conformity Assessment: Providers must document the model's structure and logic as part of the technical	- Role in Development: While not directly involved in development, authorised representatives ensure that the provider's development and technical documentation meet conformity assessment requirements. - Conformity Assessment: They verify that the development stage has been properly documented and that conformity assessment	- Role in Development: If the AI system is a safety component of a product, the product manufacturer may be considered the provider and thus responsible for the development stage. - Conformity Assessment: The manufacturer must ensure that the AI system's development aligns with the product's safety requirements	- Role in Development: If the AI system is a safety component of a product, the product manufacturer may be considered the provider and thus responsible for the development stage. - Conformity Assessment: The manufacturer must ensure that the AI system's development aligns with the product's safety requirements	- Role in Development: Importers are not involved in the development but must ensure that the AI system's development complies with EU regulations before placing it on the market. - Conformity Assessment: They verify that the development stage has been properly documented and that the system meets conformity assessment





	conformity assessment.	documentation required for conformity assessment. This includes ensuring that the development process aligns with the quality management system and risk management requirements.	documentation required for conformity assessment. This includes ensuring that the development process aligns with the quality management system and risk management requirements.	procedures have been followed, maintaining records for regulatory authorities.	and undergoes the necessary conformity assessment procedures.	and undergoes the necessary conformity assessment procedures.	requirements, including the CE marking and technical documentation.
Evaluation	Evaluation rigorously tests model performance on unseen data, including edge cases and protected attributes. It identifies failure patterns and ensures the model meets predefined ethical and technical criteria. This stage generates verifiable evidence of	- Role in Evaluation: Providers are responsible for rigorously testing the AI system's performance on unseen data, including edge cases and protected attributes. This ensures the model meets predefined ethical and technical criteria. - Conformity Assessment: Providers must	- Role in Evaluation: Deployers are not directly involved in the evaluation stage but must understand the evaluation outcomes to ensure the AI system is used appropriately and in compliance with its intended purpose. - Conformity Assessment: Deployers must ensure that the AI system is	- Role in Evaluation: While not directly involved in evaluation, authorised representatives ensure that the provider's evaluation and technical documentation meet conformity assessment requirements. - Conformity Assessment: They verify that the evaluation stage has been	- Role in Evaluation: If the AI system is a safety component of a product, the product manufacturer may be considered the provider and thus responsible for the evaluation stage. - Conformity Assessment: The manufacturer must ensure that the AI system's	- Role in Evaluation: Distributors are not involved in the evaluation stage but must verify that the AI system has been evaluated in compliance with necessary standards before making it available on the market. - Conformity Assessment: They ensure that the AI system bears the	- Role in Evaluation: Importers are not involved in the evaluation but must ensure that the AI system's evaluation complies with EU regulations before placing it on the market. - Conformity Assessment: They verify that the evaluation stage has been properly documented and



	robustness and fairness, critical for demonstrating compliance in the conformity assessment process.	generate verifiable evidence of the AI system's robustness and fairness, which is critical for demonstrating compliance in the conformity assessment process. This involves documenting the evaluation results as part of the technical documentation.	deployed in accordance with the evaluation results and instructions provided by the provider, maintaining compliance with conformity assessment requirements.	properly documented and that conformity assessment procedures have been followed, maintaining records for regulatory authorities.	evaluation aligns with the product's safety requirements and undergoes the necessary conformity assessment procedures.	required CE marking and is accompanied by the necessary documentation, indicating compliance with evaluation specifications.	that the system meets conformity assessment requirements, including the CE marking and technical documentation.
Operation	Evaluation rigorously tests model performance on unseen data, including edge cases and protected attributes. It identifies failure patterns and ensures the model meets predefined ethical and	- Role in Operation: Providers are responsible for continuously monitoring the AI system's real-world behavior for data drift, model decay, and ethical risks. They must manage feedback and complaints systematically. - Conformity	- Role in Operation: Deployers use the AI system under their authority and must ensure it operates as intended. They are responsible for monitoring the system's performance and reporting any issues to the provider. -	- Role in Operation: Deployers use the AI system under their authority and must ensure it operates as intended. They are responsible for monitoring the system's performance and reporting any issues to the	- Role in Operation: If the AI system is a safety component of a product, the product manufacturer may be considered the provider and thus responsible for the operation stage. - Conformity	- Role in Operation: Distributors are not involved in the operation stage but must verify that the AI system has been operated in compliance with necessary standards before making it available on the market. -	- Role in Operation: Importers are not involved in the operation but must ensure that the AI system's operation complies with EU regulations before placing it on the market. - Conformity Assessment:





	technical criteria. This stage generates verifiable evidence of robustness and fairness, critical for demonstrating compliance in the conformity assessment process.	Assessment: Providers must ensure ongoing logging and performance reviews to maintain compliance with the AI Act's post-market monitoring requirements. This is crucial for demonstrating continued conformity with the regulation.	Conformity Assessment: Deployers must ensure that the AI system is used in accordance with the operational guidelines and instructions provided by the provider, maintaining compliance with conformity assessment requirements.	provider. - Conformity Assessment: Deployers must ensure that the AI system is used in accordance with the operational guidelines and instructions provided by the provider, maintaining compliance with conformity assessment requirements.	Assessment: The manufacturer must ensure that the AI system's operation aligns with the product's safety requirements and undergoes the necessary conformity assessment procedures.	Conformity Assessment: They ensure that the AI system bears the required CE marking and is accompanied by the necessary documentation, indicating compliance with operational specifications.	They verify that the operation stage has been properly documented and that the system meets conformity assessment requirements, including the CE marking and technical documentation.
Retirement	Retirement ensures the safe deactivation of the AI system, with clear procedures for managing residual data, system dependencies, and risk. This stage documents decommissioning actions, supporting	- Role in Retirement: Providers are responsible for ensuring the safe deactivation of the AI system. This includes managing residual data, system dependencies, and risks associated with the system's decommissioning.	- Role in Retirement: Providers are responsible for ensuring the safe deactivation of the AI system. This includes managing residual data, system dependencies, and risks associated with the system's decommissioning.	- Role in Retirement: While not directly involved in the retirement process, authorised representatives ensure that the provider's retirement procedures and documentation meet conformity assessment	- Role in Retirement: While not directly involved in the retirement process, authorised representatives ensure that the provider's retirement procedures and documentation meet conformity assessment	- Role in Retirement: Distributors are not involved in the retirement stage but must verify that the AI system has been retired in compliance with necessary standards before making it available on the market. -	- Role in Retirement: Importers are not involved in the retirement but must ensure that the AI system's retirement complies with EU regulations before placing it on the market. - Conformity Assessment:





	auditability and accountability. Proper retirement planning is essential for lifecycle completeness in conformity assessment and for mitigating long-term legal and ethical risks.	- Conformity Assessment: Providers must document the decommissioning actions to support auditability and accountability. This documentation is crucial for demonstrating compliance with the conformity assessment requirements and mitigating long-term legal and ethical risks.	- Conformity Assessment: Providers must document the decommissioning actions to support auditability and accountability. This documentation is crucial for demonstrating compliance with the conformity assessment requirements and mitigating long-term legal and ethical risks.	requirements. - Conformity Assessment: They verify that the retirement stage has been properly documented and that conformity assessment procedures have been followed, maintaining records for regulatory authorities.	requirements. - Conformity Assessment: They verify that the retirement stage has been properly documented and that conformity assessment procedures have been followed, maintaining records for regulatory authorities.	Conformity Assessment: They ensure that the AI system bears the required CE marking and is accompanied by the necessary documentation, indicating compliance with retirement specifications.	They verify that the retirement stage has been properly documented and that the system meets conformity assessment requirements, including the CE marking and technical documentation.
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Calls to Action





Establish Continuous Monitoring and Post-Market Risk Controls

Enterprises must implement ongoing monitoring procedures, including performance reviews and feedback mechanisms, to detect ethical risks and operational drift, ensuring continuous compliance with the AI Act's post-deployment obligations.



Document Technical and Ethical Rationale at Every Lifecycle Stage

Organizations must create and maintain detailed records of system design, development decisions, evaluation results, and risk mitigations, forming a robust evidence base for both internal reviews and external conformity assessments.



Embed Fairness and Non-Discrimination Principles into Model Development

AI development teams should ensure that fairness, transparency, and data quality are prioritized during model training, with proactive steps taken to mitigate bias and ensure representative, lawful data use.



Plan for Responsible Decommissioning from the Outset

Organizations must prepare for the system's end-of-life by defining protocols for data deletion, system dependencies, and stakeholder notifications, ensuring that retirement processes are safe, compliant, and auditable.



Conclusion

The introduction of conformity assessments under the EU AI Act represents a transformative shift in how AI systems are designed, validated, and brought to market—ushering in a more consistent, transparent, and enforceable model of accountability. By requiring clear documentation, evidence of risk management, and demonstrable alignment with legal obligations, conformity assessments translate the AI Act’s high-level principles into actionable compliance pathways—reducing uncertainty for providers while enhancing regulatory oversight and protecting fundamental rights.

Throughout this report, we have shown how the conformity assessment process acts as a critical convergence point for AI developers, deployers, regulators, and other stakeholders—supporting technical scrutiny, governance alignment, and legal defensibility. When carried out with rigour, conformity assessments not only facilitate regulatory approval but also strengthen the ethical and operational quality of AI systems throughout their lifecycle.

Drawing on each stage of AI system development—from design and data governance to model evaluation, post-market monitoring, and retirement—the report highlights how conformity assessments are not merely a compliance checkpoint but a continuous framework for risk-aware innovation.

Properly scoped and implemented, they embed transparency, traceability, and human oversight into the foundation of trustworthy AI.

However, effective conformity assessments require more than formal procedures. They depend on organizational readiness, cross-functional coordination, and a willingness to embed legal and ethical safeguards into core product development processes. Smaller firms and first-time market entrants may face challenges, making early preparation, capacity building, and engagement with regulators essential.

Despite these complexities, leading firms, national authorities, and civil society groups are already demonstrating that conformity assessments can streamline market access, mitigate reputational risks, and improve public trust. As AI systems become more integrated into sensitive and high-impact domains—such as employment, healthcare, and public services—conformity assessments provide a vital mechanism to ensure that AI innovation remains lawful, ethical, and aligned with European values.





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The background of the document is a dark blue gradient. On the right side, there is a complex pattern of glowing blue lines and dots, resembling a circuit board or a network diagram. The lines are of varying thickness and connect various circular nodes, some of which are also glowing. The overall effect is a high-tech, digital aesthetic.

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